



File No.: EXP202304889

RESOLUTION OF

WARNING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 17, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The grounds for the complaint are as follows:

“(…) that the respondent has installed two surveillance cameras on the façade of their home that, due to their location (…) without having the necessary authorization for it. It points out that the signage of the camera with a sign indicating a monitored area is not complete as it does not identify the data controller” (page no. 1).

Images of the location of the cameras and affected areas are provided (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On May 22, 2023, a written response was received from the respondent regarding the described “facts,” succinctly arguing the following:

“It is a rural and isolated area on the outskirts of the town, with numerous reported thefts, break-ins, and forced locks reported to the police:

Ertzaintza No.- (...), No.- (...) and even the theft of the entrance gate (photo-1) to this property reported to Ertzaintza No.- (...).

Until the entrance gate is replaced, a chain has been placed indicating with signs both the private property and the installation of surveillance cameras (Photo-2).

Two of the cameras are located in interior areas: camera No.X in a closed garage and camera No.X inside the house focusing on the land of our property.

Attached are the Cadastral Certification and photos.

Hoping everything is clarified, best regards.”

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FOURTH: On June 17, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On January 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: On February 12, 2024, a written response was received from the respondent stating the following regarding the described facts:

“Good afternoon, on the sign announcing the cameras (which was previously sent), only an email address was provided because I called the Madrid Data Protection Agency to ask what I should put on the sign, and they told me that an email address was sufficient. It was due to ignorance that I did not include the full name.

On the other hand, I would like to mention that the complainant is my lifelong neighbor; we have known each other forever, and they can contact me (via phone, in person...) because they know perfectly well who I am.”

In view of all the actions taken, the Spanish Agency for Data Protection considers the following facts to

be proven in this procedure,

PROVEN FACTS

First. The facts arise from the complaint dated March 17, 2023, which states the following:

"(...) that the respondent has installed two surveillance cameras on the façade of their home that, due to their location (...) without having the necessary authorization for it. It points out that the signage of the camera with a sign indicating a monitored area is not complete as it does not identify the data controller" (page no. 1).

Second. B.B.B. is identified as the main responsible party, who does not deny having installed a video surveillance system.

Third. It is established that the system was initially poorly informed as the informative sign did not identify the data controller, which was subsequently modified by the respondent.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each authority

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In accordance with the control framework and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated 03/17/23, through which the presence of video surveillance cameras on private property is reported, without the "informative sign indicating the data controller."

Attached as evidence to the complaint is a photograph of the sign placed without date and time, which certifies this fact, as it only provides an email address to exercise the right of access if applicable:

***EMAIL.1.

The facts, therefore, are specified in the irregularity observed in the informative sign, which merely indicates the purpose of the system and an email address where rights can be exercised, but does not inform about the data controller.

III

Information to be provided when personal data is obtained from the data subject

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, pursuant to which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide the data subject with all the information indicated below at the time of obtaining the data:

- a) the identity and contact details of the controller and, where applicable, of the controller's representative;
- b) the contact details of the data protection officer, where applicable;
- c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party;
- e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data:

- a) the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and has been informed of the possible consequences of failing to provide such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

3. When the data controller intends to process personal data for a purpose other than that for which the data were collected, it shall provide the data subject, prior to that further processing, with information on that other purpose and any further relevant information in accordance with paragraph 2. The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

IV

Article 22(4) of the LOPDGDD provides: "The information duty established in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A connection code or internet address to this information may also be included in the informative device" (*the bold text belongs to this agency).

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The previously described facts constitute a violation of the content of Article 13 of the GDPR, due to the lack of informative sign(s) indicating the main data controller, which is classified as an infringement under Article 83.5.b) of the GDPR.

Article 72, section 1 of the LOPDGDD (Organic Law 3/2018, December 5), concerning the statute of limitations for infringements, establishes that very serious infringements "will expire after three years" and particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

V

Without prejudice to the provisions of Article 83 of the GDPR, the aforementioned Regulation provides in section 2.b) of Article 58 "Powers" the following:

“Each supervisory authority shall have all of the following corrective powers indicated below:
(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)” (*the bold text belongs to this Agency).

Furthermore, Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” states in its third section that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the proceedings will be archived.

The provisions of the second and third paragraphs of section 2 of this article shall apply in this case.” Given the circumstances present in this procedure, it is deemed appropriate to issue a warning for the infringement of Article 13 of the GDPR.

VI

According to the above, the respondent did not indicate in the informative sign the , which aspect was subsequently modified, claiming it to be an “error” that has been immediately rectified by the respondent.

Since the informative sign has been completed as stated, although the administrative infringement is declared, no measures are to be imposed, highlighting the respondent's cooperation with this agency at all times.

It is reminded that any civil matter is outside the jurisdictional framework of this Agency, and in the case of vandalism (breakage of locks, theft of items, signs, etc.) that is captured by cameras, the images should be forwarded to the local Law Enforcement and Security Forces for the appropriate legal actions.

Finally, the significance of the rights at stake is emphasized, and it should be avoided to instrumentalize this or any other agency in matters of poor neighborly relations, ensuring that the installed system complies with current legality at all times.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO ISSUE A WARNING to B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, presenting it through the Electronic Registry of the Agency

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with the documentation.

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that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

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Mar España Martí

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